

3. 30-2025-01511145 Goswami vs. Spirit General Contracting & Design, Inc	1. Case Management Conference 2. Demurrer to Complaint Defendants Nelson Yen and Yanhong Zhou demur to the Complaint of plaintiff Rayansh Goswami, a minor by and through his guardian ad litem Pareshkumar Goswami, on the ground that they owed plaintiff no duty of care that could support the causes of action for negligence and premises liability. This action arises out of damages plaintiff sustained when a loose tile fell on his head while he was showering. Plaintiff alleges that defendants owed a duty to exercise reasonable care in maintaining conditions within the remodeled home they recently worked on and breached that duty by failing to maintain the home in a safe and reasonable manner. Plaintiff further alleges that Spirit General Contracting & Design, Inc. knew or should have known that the tile posed a serious risk of injury to the residents living in the home. Defendants argue that they remodeled the bathroom in 2018 and then sold the property to Rayansh LLC before plaintiff's family took possession around August 14, 2023 and there was no special relationship between plaintiff and defendants that could give rise to a duty of care or any allegations that they knew or should have known about any workmanship issues. Defendants further argue that there can be no premises liability because they were not in possession or control of the property when the injury took place. The elements of a negligence cause of action are a legal duty owed by the defendant to the plaintiff to use due care, breach of that legal duty, causation, and injury to the plaintiff. (<i>Holmes v. Summer</i> (2010) 188 Cal.App.4th 1510, 1528.) "The elements of a cause of action for premises liability are the same as those for negligence." (<i>Castellon v. U.S. Bancorp</i> (2013) 220 Cal.App.4th 994, 998.) "In order to establish a cause of action for negligence, a plaintiff must show that the defendant owed her a legal duty of care. [Citation.] Duty is a question of law to be decided by the court. (<i>Wolf v. Weber</i> (2020) 52 Cal.App.5th 406, 410.) In determining whether there is a duty, the court must undertake a two-step inquiry. (<i>Brown v. USA Taekwondo</i> (2021) 11 Cal.5th 204, 209.) "First, the court must determine whether there exists a special relationship between the parties or some other set of circumstances giving rise to an affirmative duty to protect. Second, if so, the court must consult the factors described in <i>Rowland v. Christian</i> (1968) 69 Cal.2d 108 to determine whether relevant policy considerations counsel limiting that duty." (<i>Ibid.</i>) The <i>Rowland</i> factors are: " 'the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved.' " (<i>Id.</i> at p. 217.) A seller of real property has a duty to disclose any known facts that materially affect the value or desirability of a property when those facts are not known to, or within the reach of the diligent attention and observation of, the buyer. (<i>Assilzadeh v. California Federal Bank</i> (2000) 82 Cal.App.4th 399, 410.) A breach of that duty will give rise to damages. (<i>Ibid.</i>) However, the seller "must have actual knowledge in order to be liable for failing to disclose a material fact." (<i>Ibid.</i>)
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		Here, plaintiff does not allege that Yen or Zhou had actual knowledge of the alleged defective tile. Instead, it is only alleged that Spirit General Contracting & Design, Inc. knew or should have known that the tile posed a serious risk of injury. Moreover, plaintiff does not allege that Yen or Zhou personally performed any of the remodeling work such that they might be liable for any work that was negligently performed. Under the facts alleged, the circumstances do not give rise to an affirmative duty owed by Yen or Zhou. In light of the above, the demurrer is SUSTAINED with 20 days leave to amend. Moving party to give notice.
7.	30-2025-01475570 Gutierrez vs. Westrux International, Inc	1. Case Management Conference 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories Defendant, Westrux International, Inc. (“Defendant”), moves for an order compelling Plaintiff, Genaro Gutierrez (“Plaintiff”), to provide verified, full and complete responses to Form Interrogatories, Set One, and awarding monetary sanctions against Plaintiff in the amount of \$950. Defendant also moves for an order compelling Plaintiff to provide verified, full and complete responses to Demand for Production of Documents, Set One, and awarding monetary sanctions against Plaintiff in the amount of \$950. If a party to whom interrogatories or requests for production of documents were directed fails to serve a timely response, the propounding party may move for an order compelling responses, and for monetary sanctions. (Code Civ. Proc. §§ 2030.290(a)-(b); 2031.300(a)-(b).) The motion to compel may be heard even if untimely responses are served after the motion is filed. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 408 (“<i>Sinaiko</i>”).) By operation of law, if a party fails to serve a timely response to interrogatories, all objections that could have been asserted are waived, including any right to exercise the option to produce writings under Section 2030.230, as well as one based on privilege or on the protection for work product. (Code Civ. Proc. § 2030.290(a); <i>Sinaiko, supra</i>, 148 Cal.App.4th at p. 408; <i>Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 906.) Similarly, if a party fails to serve a timely response to requests for production, all objections are waived. (Code Civ. Proc. § 2031.300(a).) Here, on July 2, 2025, Defendant served Form Interrogatories, Set One, and Demand for Production of Documents, Set One, on Plaintiff via the email address from which Defendant had been receiving communication from Plaintiff. (Declaration of Carla M. Barcelos-Pettit, ¶ 3, Ex. A.) When no responses were received, on August 7, 2025, Defendant’s counsel wrote to Plaintiff, advising that his responses were overdue and providing additional time to provide full and complete verified responses and documents. (<i>Id.</i>, ¶ 4, Ex. B.) On September 18, 2025, Plaintiff emailed and advised Defendant’s counsel that they had been using the wrong email to communicate with him and that he had never received the initial discovery he was served with, such that on that same date, Defendant re-served the discovery of Plaintiff. (<i>Id.</i>, ¶ 6, Ex. C.) When no response was received, on October 22, 2025, Defendant’s counsel wrote to Plaintiff asking for the overdue response. (<i>Id.</i>, ¶ 7, Ex. D.) On October 31, Plaintiff asked for more time, and Defendant agreed, giving him until November 14, to serve verified full and complete